

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

NGOBROS AND COMPANY NIGERIA LTD., *Complainant,*

v.

OCEAN CARGO LINK, LLC AND KINGSTON ANSAH,
Respondents.

DOCKET NO. 14-15

Served: December 18, 2019

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER REQUIRING STATUS REPORTS

On December 17, 2019, the Commission issued an order (“Commission Order”) vacating the initial decision, dismissing as moot the claims against Kingston Ansah, and remanding the claims against Ocean Cargo Link, LLC (“OCL”) in light of the Commission’s revised interpretation of section 41102(c) of the Shipping Act.

The initial decision in this proceeding found that Respondents violated section 41102(c) by failing to deliver cargo. The Commission now requires this decision to be reconsidered in light of the new Rule 545.4(b), which requires that the Complainant establish that the claimed acts or omissions by OCL occurred on a “normal, customary, and continuous basis,” an issue not addressed in the initial decision. 46 C.F.R. § 545.4(b).

The parties are hereby **ORDERED** to each file a status report by January 15, 2020. The status report should indicate what steps will be necessary to resolve this proceeding, including whether additional discovery will be required and a proposed schedule for briefing.

Failure to file this status report may be considered a failure to prosecute or defend this action and may result in involuntary dismissal or default judgment. If the parties are able to resolve the matter or no longer wish to pursue it, a motion should be filed indicating whether a settlement was reached, pursuant to Rule 72(a)(3). 46 CFR § 502.72(a)(3).

Prior to filing their status reports, the parties should review new Commission Rule 545.4, which states:

46 U.S.C. 41102(c) is interpreted to require the following elements in order to establish a successful claim for reparations:

- (a) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- (b) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
- (c) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;
- (d) The practice or regulation is unjust or unreasonable; and
- (e) The practice or regulation is the proximate cause of the claimed loss.

46 C.F.R. § 545.4; *see also* Docket No. 18-06.

As a reminder, each party should submit their status report to the Office of the Secretary at secretary@fmc.gov and follow current filing procedures, with a courtesy copy emailed to judges@fmc.gov and opposing parties copied.



Erin M. Wirth
Chief Administrative Law Judge